

Court No. - 42

Case :- WRIT - C No. - 8882 of 2023

Petitioner :- Vinay Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anjani Kumar Rai, Ashok Kumar Rai

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Suneet Kumar, J.

Hon'ble Rajendra Kumar-IV, J.

Heard learned counsel for the petitioner.

Learned Standing Counsel prays for and is granted three weeks time to file counter affidavit.

The petitioner shall have one week', thereafter, to file rejoinder affidavit.

List on **26.04.2023**, as fresh.

The matter shall not be treated as tied up or part heard to this Bench.

Order Date :- 28.3.2023

Manoj

Court No. - 40

Case :- WRIT - C No. - 8882 of 2023

Petitioner :- Vinay Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anjani Kumar Rai, Ashok Kumar Rai

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

Heard Sri Mangala Prasad Rai, learned Senior Advocate, assisted by Sri Anjani Kumar Rai, learned counsel for the petitioner, Ms. Kirti Chaurasia, learned State Law Officer and Sri Narendra Kumar Tyagi, learned counsel for the respondent nos. 3 and 4.

Present writ petition has been preferred with the following relief:-

(i) Issue a writ, order or direction in the nature of mandamus directing the respondents to provide permanent electric connection to the petitioner for his House No. 42/1A, Shivpur, Transport Nagar, Prayagraj".

Petitioner is a practicing Advocate. It is claimed that he had purchased the property in question in the year 2013 and started construction over the said property in the year 2018. While constructing the house, he moved an application before respondent no.3 for electricity connection on 1.4.2018 and accordingly he deposited requisite amount of Rs.7625/- alongwith Rs. 100/- for providing electricity connection and for installing meter.

Shri Mangala Prasad Rai, learned Senior Advocate submits that the petitioner had started living in the said house in the year 2022 and also installed solar panel for electricity purposes. He submits that the respondents had never raised any bill from the erstwhile owner atleast since 2013, when petitioner purchased the property and it was never been in knowledge to the petitioner that there was any due/balance against the property in question. He submits that definitely in case some dues were remain qua the electricity charges, onus would lie upon the petitioner but once there was no demand, therefore, petitioner has no knowledge about the outstanding dues. Admittedly the petitioner moved an application for electricity connection and installing the meter in the year 2018 and dispute has only surfaced when petitioner has started living in the said house in the year 2022.

He submits that so far as the theft of electricity, there is full-fledged mechanism provided under the Electricity Act 2003 but respondents have not taken recourse of the said process and no final assessment has ever been made. He fairly submits that in case there is outstanding dues and the respondents give some breathing time, then definitely the said amount shall be deposited in installment as per provisions contained under Section 6.14 of the U.P. Electricity Supply Code 2005 and unnecessary petitioner may not be victimised.

Considering the facts and circumstances of the case, let the respondent no. 3- Executive Engineer, Purvanchal Vidyut Vitran Nigam, Ltd. Bamrauli, Prayagraj may examine the matter and do the needful, in accordance with law.

On the request of Shri Narendra Kumar Tiwari, learned counsel for respondent no.3 and 4, the matter is passed over.

Put up this matter as fresh on 15.5.2023.

Order Date :- 26.4.2023

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Court No. - 40

Case :- WRIT - C No. - 8882 of 2023

Petitioner :- Vinay Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anjani Kumar Rai, Ashok Kumar Rai

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

On the joint request of parties, the matter is passed over.

Put up this matter again as fresh on 29.5.2023.

Order Date :- 15.5.2023

RKP

Court No. - 40

Case :- WRIT - C No. - 8882 of 2023

Petitioner :- Vinay Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anjani Kumar Rai, Ashok Kumar Rai

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

1. Heard Shri Mangala Prasad Rai, learned Senior Counsel assisted by Shri Anjani Kumar Rai, learned counsel for the petitioner; Ms. Kirti Chaurasia, learned State Law Officer and Shri Narendra Kumar Tyagi, learned counsel for respondent nos.3 and 4.

2. Present writ petition has been preferred for a direction to respondents to provide permanent electric connection to the petitioner for his House No.42/1A, Shivpur, Transport Nagar, Prayagraj.

3. On the matter being taken up today, learned counsel for the parties are in agreement that the dispute has already been resolved between the parties and as such cause for filing the writ petition no more survives.

4. In view of above, the writ petition is **dismissed** as not pressed.

Order Date :- 29.5.2023

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